

IN THE \_\_\_\_\_ COURT OF \_\_\_\_\_, ARKANSAS  
VETERANS TREATMENT SPECIALTY COURT DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. \_\_\_\_\_

\_\_\_\_\_  
(First, Middle, and Last name) DEFENDANT

**PETITION TO DISMISS AND SEAL OFFENSE IN VETERANS  
TREATMENT SPECIALTY COURT PROCEEDING PURSUANT TO  
A.C.A. §16-101-106 AND A.C.A. §16-90-1401 {AND TO SEAL  
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Comes the Defendant and for his/her petition to dismiss and seal the  
record states:

1. The defendant was arrested on the \_\_\_\_\_ day of \_\_\_\_\_,  
\_\_\_\_\_, and charged with the offense(s) of:

\_\_\_\_\_  
\_\_\_\_\_

in violation of A.C.A. § \_\_\_\_\_.

2. With the Defendant's consent and without entering a judgment of guilt,  
the Court deferred further proceedings and placed the Defendant on  
probation/court supervision.

IN THE District Court COURT OF Example County, ARKANSAS  
VETERANS TREATMENT SPECIALTY COURT DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. 24-CR-001234

Jordan Avery Reyes  
(First, Middle, and Last name) DEFENDANT

**PETITION TO DISMISS AND SEAL OFFENSE IN VETERANS  
TREATMENT SPECIALTY COURT PROCEEDING PURSUANT TO  
A.C.A. §16-101-106 AND A.C.A. §16-90-1401 {AND TO SEAL  
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Comes the Defendant and for his/her petition to dismiss and seal the  
record states:

1. The defendant was arrested on the \_\_\_\_\_ day of \_\_\_\_\_,  
\_\_\_\_\_, and charged with the offense(s) of:

\_\_\_\_\_  
\_\_\_\_\_

in violation of A.C.A. § \_\_\_\_\_.

2. With the Defendant's consent and without entering a judgment of guilt,  
the Court deferred further proceedings and placed the Defendant on  
probation/court supervision.

3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved veteran's treatment specialty court program.
4. On \_\_\_\_\_ the Defendant successfully completed the veteran's treatment specialty court program.
5. The Court has received a recommendation from the prosecuting attorney for the dismissal of the veteran's treatment specialty court program and the sealing of the record.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or  
☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_
7. If applicable, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in case number(s) \_\_\_\_\_ in \_\_\_\_\_ County \_\_\_\_\_ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of  
\_\_\_\_\_  
\_\_\_\_\_ in violation of A.C.A. § \_\_\_\_\_.
8. The offense(s) listed in Paragraph 7 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
9. The offense(s) listed in Paragraph 7 above, if any, is/are not:
  - i. Residential burglary; A.C.A. § 5-39-201(a)
  - ii. Commercial burglary; A.C.A. § 5-39-201(b)
  - iii. Breaking or entering; or A.C.A. § 5-39-202
  - iv. Driving or boating while intoxicated. A.C.A. § 5-65-103

3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved veteran's treatment specialty court program.
4. On \_\_\_\_\_ the Defendant successfully completed the veteran's treatment specialty court program.
5. The Court has received a recommendation from the prosecuting attorney for the dismissal of the veteran's treatment specialty court program and the sealing of the record.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or  
☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_
7. If applicable, on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in case number(s) \_\_\_\_\_ in Example County County \_\_\_\_\_ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of  
\_\_\_\_\_  
\_\_\_\_\_ in violation of A.C.A. § \_\_\_\_\_.
8. The offense(s) listed in Paragraph 7 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
9. The offense(s) listed in Paragraph 7 above, if any, is/are not:
  - i. Residential burglary; A.C.A. § 5-39-201(a)
  - ii. Commercial burglary; A.C.A. § 5-39-201(b)
  - iii. Breaking or entering; or A.C.A. § 5-39-202
  - iv. Driving or boating while intoxicated. A.C.A. § 5-65-103

10. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

11. As evidenced by the signature below, the above information is true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, \_\_\_\_\_, prays this Court enter an Order Dismissing and Sealing the above-referenced case pursuant to A.C.A. §16-98-303.

FURTHER, if applicable, the Defendant, \_\_\_\_\_, prays this Court enter an Order Sealing case number(s)

\_\_\_\_\_ from \_\_\_\_\_

County \_\_\_\_\_ Court pursuant to A.C.A. §16-101-106(b)(1)

\_\_\_\_\_  
Defendant’s Signature

\_\_\_\_\_

10. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

11. As evidenced by the signature below, the above information is true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, \_\_\_\_\_, prays this Court enter an Order Dismissing and Sealing the above-referenced case pursuant to A.C.A. §16-98-303.

FURTHER, if applicable, the Defendant, \_\_\_\_\_, prays this Court enter an Order Sealing case number(s)

\_\_\_\_\_ from \_\_\_\_\_

County [Example County](#) Court pursuant to A.C.A. §16-101-106(b)(1)

\_\_\_\_\_  
Defendant’s Signature

\_\_\_\_\_

VERIFICATION

STATE OF ARKANSAS  
COUNTY OF \_\_\_\_\_

Comes the Defendant/Petitioner, \_\_\_\_\_, under oath and states  
that the foregoing Petition is true and correct to the best of my knowledge  
and belief.

\_\_\_\_\_  
Petitioner

Subscribed and sworn to before me on this \_\_\_\_\_,  
day of \_\_\_\_\_, 20\_\_\_\_.

(Seal)  
\_\_\_\_\_  
Notary Public

My Commission expires: \_\_\_\_\_

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER  
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND  
NATIONAL RECORD SYSTEMS**

|            |                              |
|------------|------------------------------|
| Race _____ | Arrest Tracking Number _____ |
| Sex _____  | SID No. _____                |
| DOB _____  | FBI No. (If known) _____     |

VERIFICATION

STATE OF ARKANSAS  
COUNTY OF \_\_\_\_\_

Comes the Defendant/Petitioner, \_\_\_\_\_, under oath and states  
that the foregoing Petition is true and correct to the best of my knowledge  
and belief.

\_\_\_\_\_  
Petitioner

Subscribed and sworn to before me on this \_\_\_\_\_,  
day of \_\_\_\_\_, 20\_\_\_\_.

(Seal)  
\_\_\_\_\_  
Notary Public

My Commission expires: \_\_\_\_\_

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER  
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND  
NATIONAL RECORD SYSTEMS**

|            |                              |
|------------|------------------------------|
| Race _____ | Arrest Tracking Number _____ |
| Sex _____  | SID No. _____                |
| DOB _____  | FBI No. (If known) _____     |

Certificate of Service

I, \_\_\_\_\_, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

\_\_\_\_\_  
Defendant or Defendant's Attorney

\_\_\_\_\_  
Date

Certificate of Service

I, \_\_\_\_\_, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

\_\_\_\_\_  
Defendant or Defendant's Attorney

\_\_\_\_\_  
Date